



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

February 20, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 13997
(NINTH REVISION)

EXPIRATION DATE: 2028-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Maritime Helicopters, Inc.
Homer, AK
FAA Certificate Number: ENRL619D (Part 133)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials by 14 CFR Part 133 Rotorcraft External Load Operations, transporting hazardous materials attached to or suspended from an aircraft, in remote areas of the US only, without being subject to certain hazard communication requirements, quantity limitations, and certain loading and stowage requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.101 Hazardous Materials Table Column (8C) in that bulk packaging is not authorized and Column (9B) in that the hazardous materials are forbidden for transportation aboard cargo aircraft or may not exceed the quantity limitations, except as specified herein; § 172.204(c)(3), § 173.27(b)(2) and § 175.30(a)(1) in that the explosives and oily rags are forbidden aboard cargo aircraft, except as specified herein; § 172.200 in that shipping papers are waived for other than Class 1 materials; § 173.242, § 175.310(c), and Part 173 in that

Tracking Number: 2023105086

certain specification packaging requirements are waived; § 175.75 in that alternative stowage is authorized; and §§ 172.301(c) and 172.302(c) in that marking the special permit number on each package is waived.

5. BASIS: This special permit is based on the application of Maritime Helicopters, Inc. dated October 20, 2023, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Acetylene, dissolved	2.1	UN1001	N/A
Aerosols, flammable, (<i>each not exceeding 1 L capacity</i>)	2.1	UN1950	N/A
Air, compressed	2.2	UN1002	N/A
Ammonium nitrate-fuel oil mixture*	1.5D	NA0331	N/A
Articles, explosive, n.o.s.*	1.4S	UN0349	N/A
Articles, explosive, n.o.s. (pyrotechnic breaking capsule)*	1.4C	UN0351	N/A
Batteries, wet, filled with acid, <i>electric storage</i>	8	UN2794	N/A
Boosters, <i>without detonator</i> *	1.1D	UN0042	N/A
Butane <i>see also</i> Petroleum gases, liquefied	2.1	UN1011	N/A
Charges, shaped, flexible, linear*	1.1D	UN0288	N/A
Charges, shaped, <i>without detonator</i> *	1.1D	UN0059	N/A
Cord, detonating, <i>flexible</i> *	1.1D	UN0065	N/A
Detonator assemblies, electric*	1.1B	UN0030	N/A
Detonator assemblies, non-electric*	1.1B	UN0360	N/A

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Detonator assemblies, non-electric <i>for blasting*</i>	1.4B	UN0361	N/A
Detonators, electric, <i>for blasting*</i>	1.4B	UN0255	N/A
Diesel fuel	3	UN1202	III
Explosive, blasting, type A*	1.1D	UN0081	N/A
Explosive, blasting, type B <i>or</i> Agent blasting, type B*	1.5D	UN0331	N/A
Explosive, blasting, type E*	1.1D	UN0241	N/A
Explosive, blasting type E <i>or</i> Agent blasting, type E*	1.5D	UN0332	N/A
Flammable liquids, n.o.s.	3	UN1993	II
Fuel, aviation, turbine engine	3	UN1863	II or III
Fuel oil (<i>No. 1,2,4,5, or 6</i>)	3	NA1993	III
Fuse, safety*	1.4S	UN0105	N/A
Gasoline	3	UN1203	II
Hydrochloric acid	8	UN1789	II
Kerosene	3	UN1223	III
Lighters <i>containing flammable gas</i>	2.1	UN1057	N/A
Lighter refills <i>containing flammable gas not exceeding 4 fluid ounces (7.22 cubic inches) and 65 grams of flammable gas</i>	2.1	UN1057	N/A
Lithium metal batteries packed with equipment**	9	UN3091	N/A

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium metal batteries contained in equipment**	9	UN3091	N/A
Lithium metal batteries**	9	UN3090	N/A
Lithium ion batteries packed with equipment**	9	UN3481	N/A
Lithium ion batteries contained in equipment**	9	UN3481	N/A
Lithium ion batteries**	9	UN3480	N/A
Methanol	3	UN1230	II
Oxygen, compressed	2.2	UN1072	N/A
Paint related material <i>including paint thinning, drying, removing, or reducing compound</i>	3	UN1263	I
Petroleum distillates, n.o.s. or Petroleum products, n.o.s.	3	UN1268	I
Petroleum gases, liquefied or Liquefied petroleum gas	2.1	UN1978	N/A
Propane	2.1	UN1075	N/A
Propane <i>see also</i> Petroleum gases, liquefied	2.1	UN1978	N/A
Rags, oily	4.2	UN1856	III
Pentaerythritol tetranitrate or PETN, desensitized with not less than 15% phlegmatizer by mass*	1.1D	UN0150	N/A
Trinitrotoluene and Trinitrotoluene mixtures or TNT and trinitrotoluene mixtures or TNT and hexanitrostilbene mixtures or Trinitrotoluene and hexanitrostilbene mixtures*	1.1D	UN0388	N/A

*All explosive material must be approved as required by 49 CFR 173.56.

**A lithium battery, including a lithium battery contained in or packed with equipment, with a mass exceeding 35 kg may not be transported under the terms of this special permit unless the offeror (shipper) holds an approval in accordance with § 172.102(c)(2), Special Provision A54.

7. SAFETY CONTROL MEASURES FOR MATERIALS OTHER THAN CLASS 1 MATERIALS:

a. PACKAGING: Prescribed packaging is the manufacture's original packaging or a packaging of equal or greater strength and integrity. Compatibility and effectiveness of all packaging must, at a minimum, meet the requirements of § 173.24.

b. Propane must be packaged in DOT specification 51 portable tanks with a capacity not greater than 120 gallons.

c. The portable tank must be properly secured as a jettisonable-external sling load.

d. Aerosols and compressed gases must be secured in an upright position with protective caps and/or covers installed to prevent any unwanted discharge and be secured against movement incidental to transportation.

e. Class 3 materials may also be packaged in a Pro Barrel portable tank with a capacity of 500 gallons or less. Each portable tank must be secured to a plywood base that is designed and tested to MIL SPEC MIL-D-23119.

f. Batteries (Other than Lithium batteries): All batteries packed in equipment must be packed in a manner that prevents accidental activation or dangerous evolution of heat. Spare batteries or batteries packed with equipment must have their terminals insulated or protected to prevent short circuits and prevent a dangerous evolution of heat.

g. Lithium Cells and Batteries: All lithium cells and batteries (including those packed with equipment or contained in equipment) must be packed in such a manner as to prevent short circuits, including movement that could lead to short circuits. The batteries must be equipped with an effective means to prevent dangerous reverse current flow (e.g., diodes, fuses, etc.) if a battery contains cells or series of cells that are connected in parallel. Spare cells and batteries must be separated from other metallic objects by being packed in a sturdy plastic bag. Battery powered equipment must be packaged in a manner that prevents accidental activation. Additionally, they must be of a type proven to meet the requirements of each test in the UN Manual of Tests and Criteria (IBR; see 49 CFR 171.7).

h. Compressed Gas: Except as specified in paragraph 7.b., compressed gases must be packaged and conform to Subpart G of Part 173. The cylinders must be secured in

such a manner that prevents the cylinder from movement during transportation. The cylinder neck/valve shall be protected by the use of safety caps or collars. At no time shall the safety caps or collars be used as a lifting point. The cylinder must be inspected for leakage, corrosion, denting, bulging, gouging, and fire damage. Inspection of valve, valve protection and around and inside the footing for corrosion and foreign materials must be conducted. If a cylinder fails any part of the visual inspection, it may not be transported until repaired or replaced.

- i. Division 4.2 materials must be transported in sealed containers to prevent any spontaneous combustion.
- j. Compatibility of Cargo: Hazardous materials that might react dangerously with one another may not be placed next to each other or in a position that would allow a dangerous interaction in the event of leakage. The Segregation Table in § 175.78 shall be used.
- k. Alternative notification procedures for 49 CFR § 175.33, may be established subject to the written approval of the FAA Office of Hazardous Materials Safety.

8. SAFETY CONTROL MEASURES FOR CLASS 1 MATERIALS:

- a. PACKAGING: As prescribed in § 173.62 further packaged in a type 3 magazine manufactured per ATF publication 5400.7 section 55.209 and transported as a Class B external load. The explosives are to be packaged, marked, and labeled in conformance with the HMR. When metal outer packages are used a 3-5 foot metal chain or other type of static discharge wick must be fitted to the bottom of the metal box to dissipate the build-up of static electricity.
- b. Authorized Explosives: Explosives authorized in paragraph 6. that are forbidden for transportation aboard aircraft in the HMR, may be accepted and transported in cargo-only aircraft subject to the conditions stated herein.
- c. Maximum Weight: Not more than 1,000 pounds total net weight of explosives may be carried in, on, or suspended from the aircraft.
- d. Advanced Notice to the FAA Office of Hazardous Materials Safety. The operator of the aircraft must notify the FAA Office of Hazardous Materials Safety (9-AWA-AXH-SPFlightNotifications@faa.gov) and their assigned Hazardous Materials Principal Inspector. This notification must be given at least 72 hours in advance of plans to operate under the special permit, unless prior arrangements have been made with the FAA Office of Hazardous Materials Safety. The notification must include the point of departure, intermediate stops, destination(s), and a loading and departure schedule. If a flight

schedule deviates more than four hours from the originally scheduled departure time, the operator of the aircraft must immediately notify 9-AWA-AXH-SPFlightNotifications@faa.gov. Alternative notification procedures may be established subject to the written approval of the Office of Hazardous Materials Safety.

e. Advance Permission from Airport: If an airport is used, the operator of the aircraft must have advance permission from the owner or operator of each manned airport where the material is to be loaded or unloaded or where aircraft is to land while the materials are on board. When the destination is changed after departure because of weather or other unforeseen circumstances, permission from the owner or operator of the alternate airport must be obtained as soon as practicable.

f. Flight Plan: The operator of the aircraft must include the following information in the “Remarks” section of each flight plan when the provisions of this special permit are exercised:

- (1) The classification of each hazardous material aboard attached to or suspended from the aircraft.
- (2) The net weight of each class of hazardous material aboard the aircraft.

g. Loading and Unloading: Loading and unloading operations under this special permit must comply with the following:

- (1) The loading and unloading of the aircraft must be conducted at a safe distance from heavily populated areas and from any place of human abode or assembly. However, at an airport where the airport owner or operator or authorized representative thereof has designated a specific location for loading or unloading, the explosives may not be loaded or unloaded at any other location.
- (2) Carriage of explosives under this special permit is subject to the same limitations and conditions specified for their transportation by motor vehicle in § 177.835(g) and § 177.848.
- (3) During loading or unloading, no person may smoke an electronic cigarette, smoke or carry a lighted cigarette, cigar, or pipe, or operate any device capable of causing an open flame or spark within 50 feet of the aircraft.
- (4) No fueling operations of the aircraft may be conducted during loading and unloading of the explosives. Whenever possible fueling operations shall be conducted without hazardous materials attached to the aircraft and located at a safe distance from any hazardous materials.
- (5) A static discharge procedure must be implemented for Class 1 materials.

h. Requirements During Operation of Aircraft: Operation of the aircraft during takeoff, en route, and landing must be conducted at a safe distance from heavily populated areas.

- (1) Before movement of the aircraft prior to take-off, in an airport traffic area, the pilot of the aircraft must notify the control tower of the class (es) of explosive(s) (including ammunition) on board.
- (2) The pilot of the aircraft, prior to entering an airport traffic area, must notify the control tower of the amount and class of explosives on board and request this information be relayed to the appropriate airport officials. For airports without control towers, this call must be made to the Flight Service Station nearest the airport of intended landing.
- (3) When under radar control during the approach and landing phase, the pilot must request appropriate vectors to avoid heavily populated areas.
- (4) Whenever explosives are on board, attached to, or suspended from the aircraft, the pilot must ensure that no person on the aircraft may smoke an electronic cigarette, smoke or carry a lighted cigarette, cigar, or pipe, or operate any device capable of causing an open flame or spark.

i. Pilot Requirements: The operator of the aircraft must ensure the following with respect to pilots of aircraft operating under this special permit:

- (1) A minimum of two pilots is required aboard any multi-engine aircraft carrying explosives under this special permit.
- (2) Each pilot must be provided written instructions outlining any conditions and limitations applicable at each airport of intended use. The name of the official(s) granting the advance permission required by paragraph 8.e. above must be included in these instructions, except when a landing permit has been granted by an agency of the Department of Defense for landing at a military installation.
- (3) Each pilot of an aircraft being operated under this special permit must have received formal training on the requirements of the HMR that are applicable to his duties and be thoroughly familiar with the specific requirements of this special permit.

j. Attendance of Explosives: Explosives that are forbidden for transportation aboard aircraft in the HMR must be attended at all times they are in the possession of the operator unless placed in an explosive storage magazine that is approved by the Federal, State or local authority or at a location on a military installation designated by appropriate

military authorities. All persons accompanying Class 1 explosives must be ATF Licensed Employees.

k. A copy of the required security plan must be made available to any DOT inspector upon request.

9. SPECIAL PROVISIONS:

a. The aircraft operator must maintain permanent records of each flight during which explosives are carried under the authority of this special permit. This record must be made available at its principal business office to representatives of the Federal Aviation Administration and submitted to the Associate Administrator for Hazardous Materials Safety (AAHMS) upon request. The record for each flight must include:

- (1) Name of the shipper(s).
- (2) Name of the consignee(s).
- (3) Origin airport(s).
- (4) En route airport(s).
- (5) Destination airport.
- (6) Shipping name and class of each explosive.
- (7) Net weight of each explosive.
- (8) Name of each pilot and any other person aboard the aircraft.
- (9) Registration number of the aircraft.
- (10) Name of the individual representing the owner or operator of each manned airport who granted advance permission for the aircraft to land or take-off while it was being operated under this special permit.

The record required by this paragraph must be maintained current to within 72 hours of each flight under this special permit.

b. Materials transported by external load must comply with the safety controls specified in this special permit.

c. This special permit does not grant the authority to use foreign controlled airspace or airports outside the United States.

- d. Operations under the terms of this special permit are only authorized to be conducted in remote areas of the U.S.
 - e. The marking requirements of §§ 172.301(c) and 172.302(c) are waived.
 - f. The requirements for shipping papers are waived for other than Class 1 materials.
 - g. Each outer packaging must be properly marked and labeled for the hazardous materials contained within.
 - h. This special permit does not waive any FAA airworthiness requirements or the need to obtain other required FAA authorizations.
10. MODES OF TRANSPORTATION AUTHORIZED: Rotorcraft External Load Operations, Cargo-only aircraft.
11. OPERATIONAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport materials covered by this special permit.
- a. Authorized Aircraft: Aircraft used under this special permit must be authorized as part of an FAA 14 CFR Part 133 Operating Certificate.
 - b. Operations Manual: FAA 14 CFR Part 133 operations must be conducted in accordance with conditions and limitations specified in the certificate holder's FAA-approved Rotorcraft Load Combination Flight Manual (RLCFM) and Hazardous Material Safety Mitigation Plan.
 - c. Authorized Persons Aboard Aircraft: No person may be carried other than as authorized by 14 CFR § 133.35.
12. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

13. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notices of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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